

		obtain a judgment against the defendant on the claim.” (Code of Civ. Proc., § 405.3). Petitioners have the burden of establishing they are more than likely than not to succeed on their request to remove the trustee for violating her duties as Trustee. The evidence offered by Petitioners in connection with their supplemental briefing is sufficient to establish the probable validity of that claim. The motion to expunge is DENIED. Petitioners are directed to give notice.
10	McElroy – Trust 30-2025-01478387	Motion to Consolidate Petitioner Kimberly Pierce’s Motion to Consolidate (ROA 29) is DENIED. As an initial matter, the motion is procedurally defective. The motion did not “[l]ist all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record” or “[c]ontain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first” as required by Rules of Court, rule 3.350(a)(1)(A) & (B). Further, a notice of motion to consolidate must be filed in each case sought to be consolidated. (CRC, Rule 3.350(a)(1)(C).) Moving on the merits of the motion, the court is not persuaded that consolidation of these actions is appropriate. “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code of Civ. Proc., § 1048(a).) The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (<i>Todd-Stenberg v. Dalkon Shield Claimants Trust</i> (1996) 48 Cal. App. 4th 976, 978–79.)

		Here, the four proceedings involve different claims and the parties are not entirely duplicative. Further, the pleadings in three of the proceedings are not yet settled. Accordingly, the motion is DENIED. Sandra McElroy is directed to give notice.
11	McElroy – Other Probate 30-2024-01383747	Motion to Consolidate Petitioner Kimberly Pierce’s Motion to Consolidate (ROA 78) is DENIED. As an initial matter, the motion is procedurally defective. The motion did not “[l]ist all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record” or “[c]ontain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first” as required by Rules of Court, rule 3.350(a)(1)(A) & (B). Further, a notice of motion to consolidate must be filed in each case sought to be consolidated. (CRC, Rule 3.350(a)(1)(C).) Moving on the merits of the motion, the court is not persuaded that consolidation of these actions is appropriate. “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code of Civ. Proc., § 1048(a).) The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (<i>Todd-Stenberg v. Dalkon Shield Claimants Trust</i> (1996) 48 Cal. App. 4th 976, 978–79.) Here, the four proceedings involve different claims and the parties are not entirely duplicative. Further, the